

## Contract | अनुबंध



Contract No | अनुबंध क्रमांक: GEMC-511687796425548

Generated Date | अनुबंध तिथि: 17-Jan-2023

Bid/RA/PBP No. | बोली/आरए/पीबीपी संख्या: [GEM/2022/B/2890618](#)

| Organisation Details   संगठन विवरण                                                                                                                                                                                                                    | Buyer Details   खरीदार विवरण                                                                                                                                                                                                                                                                                                              |
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| Type   प्ररूप : State Government<br>Ministry   मंत्रालय : -<br>Department   विभाग : Home Department Uttar Pradesh<br>Organisation Name   संगठन का नाम : Uttar Pradesh Fire Service Govt. of Uttar Pradesh<br>Office Zone   कार्यालय क्षेत्र : lucknow | Designation   पद : Chief Fire Officer<br>Contact No.   संपर्क नंबर : 0522-2390514-<br>Email ID   ईमेल आईडी : buyer2.upfsgup.up@gembuyer.in<br>GSTIN   जीएसटीआईएन : -<br>Address   पता : Fire Service hqrs 4th Tower ist & 2nd floor Police Hqrs<br>Signature Building Gomti Nagar Lucknow 226002,<br>LUCKNOW, UTTAR PRADESH-226002, India |

| Financial Approval Detail   वित्तीय स्वीकृति विवरण                                                                                                                                                                                                                                                                    | Paying Authority Details   भुगतान प्राधिकरण विवरण                                                                                                                                                                                                                                                                                                        |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| IFD Concurrence   आईएफडी सहमति : No<br>Designation of Administrative Approval   डिरेक्टर जनरल फायर सर्विस हेडक्वार्टर<br>Lucknow<br>प्रशासनिक अनुमोदन का पदनाम :<br>Designation of Financial Approval   डिरेक्टर जनरल फायर सर्विस हेडक्वार्टर<br>Lucknow<br>वित्तीय अनुमोदन का पदनाम : Finance Controller PHQ Lucknow | Role : BUYER<br>Payment Mode   भुगतान का तरीका : Offline<br>Designation   पद : Chief Fire Officer<br>Email ID   ईमेल आईडी : buyer2.upfsgup.up@gembuyer.in<br>GSTIN   जीएसटीआईएन : -<br>Address   पता : Fire Service hqrs 4th Tower ist & 2nd floor Police Hqrs<br>Signature Building Gomti Nagar Lucknow 226002,<br>Lucknow, UTTAR PRADESH-226002, India |

| Seller Details   विक्रेता विवरण                                                                                                                                                                                                                                                                                                                                                                                                                     |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| GeM Seller ID   जेम विक्रेता आईडी : A3E1180000653894<br>Company Name   कंपनी का नाम : KRIBA TECHNO INC<br>Contact No.   संपर्क नंबर : 09223500088<br>Email ID   ईमेल आईडी : kribatechno4@gmail.com<br>Address   पता : 15/704,LILAC BUILDING,REGENCY ESTATE,DOMBIVLI EAST,<br>Thane, MAHARASHTRA-421203, -<br>MSME verified   एमएसएमई सत्यापित : No<br>MSME Registration number   एमएसएमई पंजीकरण संख्या : -<br>GSTIN   जीएसटीआईएन : 27A00PB3354C1Z8 |

\*GST / Tax invoice to be raised in the name of | जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा - Buyer

| Product Details   उत्पाद विवरण               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                               |             |                                     |                                                                                                                                                                                                                                                                                                                              |                                                                                          |
|----------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|-------------|-------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| #                                            | Item Description   आइटम विवरण                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Ordered Quantity   आइटम विवरण | Unit   इकाई | Unit Price (INR)   इकाई मूल्य (INR) | Tax Bifurcation (INR)   कर विभाजन (INR)                                                                                                                                                                                                                                                                                      | Price (Inclusive of all Duties and Taxes in INR)   मूल्य (INR) में सभी शुल्क और कर सहित) |
| 1                                            | <div>Product Name   उत्पाद का नाम : ACCESS fireman boots</div> <div>Brand   ब्रांड : ACCESS</div> <div>Brand Type   ब्रांड प्रकार : Registered Brand</div> <div>Catalogue Status   कैटलॉग की स्थिति: OEM verified catalogue</div> <div>Selling As   कैसे बेचा जा रहा है : OEM verified Reseller</div> <div>Category Name &amp; Quadrant   श्रेणी का नाम और चतुर्थांश: fire proximity suit (Q2)</div> <div>Model   मॉडल: FIREMAN BOOTS</div> <div>HSN Code   एचएसएन कोड: HSN not specified by seller</div> | 3,000                         | pieces      |                                     | <div>GST Cess 1   जीएसटी उपकर 1 (0%) : 0</div> <div>GST Cess 2   जीएसटी उपकर 2 (0 per accounting unit) : 0</div> <div>Input Tax Credit (ITC) on GST   जीएसटी पर इनपुट टैक्स क्रेडिट (आईटीसी)   :</div> <div>ITC on GST Cess 1   जीएसटी उपकर पर आईटीसी 1 : -</div> <div>ITC on GST Cess 2   जीएसटी उपकर पर आईटीसी 2 : -</div> |                                                                                          |
| Total Order Value   कुल ऑर्डर मूल्य (in INR) |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                               |             |                                     |                                                                                                                                                                                                                                                                                                                              |                                                                                          |

| Consignee Detail   परेषिती विवरण |                                                                                                                                                                                                                      |                      |                    |                   |                                                           |                                                        |
|----------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|--------------------|-------------------|-----------------------------------------------------------|--------------------------------------------------------|
| S.No   क्र.सं.                   | Consignee   परेषिती                                                                                                                                                                                                  | Item   वस्तु         | Lot No.   लॉट नंबर | Quantity   मात्रा | Delivery Start After   दिनांक के बाद डिलीवरी शुरू करना है | Delivery To Be Completed By   वितरण पूरा कब तक करना है |
| 1                                | Designation   पद : -<br>Email ID   ईमेल आईडी : cfops.lu-up@gov.in<br>Contact   संपर्क : 0522-3133241-<br>GSTIN   जीएसटीआईएन : -<br>Address   पता : Fire Service hqrs 4th Tower ist & 2nd floor Police Hqrs Signature | ACCESS fireman boots | -                  | 3,000             | 17-Jan-2023                                               | 16-Feb-2023                                            |

**Product Specification for ACCESS fireman boots**

| Specification  <br>विनिर्देश | Sub-Spec   उप-विनिर्देश                                                                                                                                                                                         | Value   मूल्य                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Generic                      | Conformity to EN Standard                                                                                                                                                                                       | en 15090 2012 for fireman boots                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|                              | Item Descriptions                                                                                                                                                                                               | fireman boots                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|                              | Educational Instructions (Supplier Has To Educate to End user)                                                                                                                                                  | "The items are to be used at a close proximity to the Fire never exceeding a closeness of more than 1 meter from the Fire. They are NEVER to BE USED for FIRE ENTRY Purpose. How to use the fire suit about wearing and removing. How maintain the fire suit. Limitation of use of fire suit according to the user manual provided along with the fire suit Fire suit needs to be Inspected every time after use to identify if it suitable for deployment. The reason is that after Exposure to every Fire Accident the Fire Fighting suit may get damaged and hence, this may be render the Fire Proximity suit unsuitable for deployment till it is repaired . Wash care maintenance of Fire suit is strongly recommended. Ideally after every six months the Fire Suits should be sent back to the manufacture for Wash Care and Maintenance. This will ensure that the Fire Proximity suits are Clean and suitable for deployment after exposure to previous Fire Fighting activity. The Fire Fighting suits normally are recommended with a shelf life of 5 years from the date of manufacture and ideally should be replaced after this period. " |
| Constructional               | Fire Proximity suit (Coat and Trouser) size                                                                                                                                                                     | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|                              | Suit colour                                                                                                                                                                                                     | Navy Blue                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|                              | Suit Fabric                                                                                                                                                                                                     | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|                              | Generic Fibre of suit                                                                                                                                                                                           | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|                              | Fireman Helmet (Type B) sizes shall be as per clause 5 of Helment Adjustment of EN:443-2008, Bicomponent membrane, Lining Fabric contains fibre composition of:-Blend of Meta aramide ( or ) Blend of Modarylic | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|                              | Fireman Gloves size                                                                                                                                                                                             | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|                              | Fireman boot size                                                                                                                                                                                               | 9                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| Certification                | Firehood shall be manufactured in various sizes or be sufficiently elastic to be compitable with various head sizes and shape                                                                                   | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|                              | Labelling                                                                                                                                                                                                       | Each set must be having LABEL attached and Instruction on the label. Improper process could modify the clothing features and protective levels, Keep clothing dry and clean in suitable place at ambient temperature and humidity ,Do not expose it to heat or cold surface and to repair the clothing we recommend to use only materials like the ones used for the manufacturing of the clothing . No other materials must be used and repairs must be carried out only by an experienced staff or directly by the manufacturer .The clothing has been planned with high quality components . In spite of this protective features can be subject to degradation in the long run as a result of the condition of working place. Therefore it is not possible to fix the durability of the clothing but in any case, following exposure to a risk that might damage whatever components, the time frame is undecided.                                                                                                                                                                                                                                   |
|                              | Approval                                                                                                                                                                                                        | All the Items (components) should be approved to relevant EN standards and should be supported with both "EC Type Examination Certificate"as per Article 10 & "EC Quality System certificate" as per Article 11 A or 11B as per EEC guidelines individually.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|                              | Technical manual comprising of servicing details shall be supplied with system                                                                                                                                  | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|                              | The firm shall furnish manufacturers ™ test certificate for the fabric, major components and main item on the basis of the test performed on the representative samples                                         | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| Certification                | Availability of complete & satisfactory test Report from Central govt/ NABL/ ILAC accredited laboratory for individual components (as applicable) conforming                                                    | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                |                                                                                                                                                                                                                                                               |
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|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | to relevant EN standard                                                                                                        |                                                                                                                                                                                                                                                               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Test report No.                                                                                                                | ON DEMAND                                                                                                                                                                                                                                                     |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Test Report date                                                                                                               | ON DEMAND                                                                                                                                                                                                                                                     |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Name of lab where test conducted                                                                                               | ON DEMAND                                                                                                                                                                                                                                                     |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Availability of CE certificate for individual item (component) genuinity of which to be verified from the certification agency | Yes                                                                                                                                                                                                                                                           |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Copy of test report and certifications to be furnished to the buyer on demand                                                  | Yes                                                                                                                                                                                                                                                           |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                |                                                                                                                                                                                                                                                               |
| Buyer Defined Additional Specification for  खरीदार परिभाषित अतिरिक्त विशिष्टता के लिए ACCESS fireman boots                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                |                                                                                                                                                                                                                                                               |
| Specification  विनिर्देश                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                | Value  मूल्य                                                                                                                                                                                                                                                  |
| Approval                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                | All the Items (components) should be approved to relevant EN standards and should be supported with both "EC Type Examination Certificate "as per Article 10 & "EC Quality System certificate" as per Article 11 A or 11B as per EEC guidelines individually. |
| Technical manual comprising of servicing details shall be supplied with system                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                | Yes                                                                                                                                                                                                                                                           |
| The firm shall furnish manufacturers™ test certificate for the fabric, major components and main item on the basis of the test performed on the representative samples                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                | Yes                                                                                                                                                                                                                                                           |
| Availability of complete & satisfactory test Report from Central govt/ NABL/ ILAC accredited laboratory for individual components (as applicable) conforming to relevant EN standard                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                | Yes                                                                                                                                                                                                                                                           |
| Availability of CE certificate for individual item (component) genuinity of which to be verified from the certification agency                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                | Yes                                                                                                                                                                                                                                                           |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                |                                                                                                                                                                                                                                                               |
| Corrigendum  शुद्धिपत्र                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                |                                                                                                                                                                                                                                                               |
| 1. GeM-Bidding-Corr-4167518-1.pdf : <a href="#">click here</a>  यहां क्लिक करें                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                |                                                                                                                                                                                                                                                               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                |                                                                                                                                                                                                                                                               |
| General Clauses w.r.t RCM/FCM  आरसीएम/एफसीएम के संबंध में सामान्य खंड                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                |                                                                                                                                                                                                                                                               |
| <p>1. Where ever RCM is applicable, for sellers (Regular GST registered seller who opted out of FCM as per notifications of GST like GTA , unregistered seller), Buyer have liability of paying the GST and GST cess to the government on the specified rate mentioned by them in this contract. Seller will invoice buyer with Zero GST and GST cess.</p> <p>2. For Registered sellers as per FCM, rates will be inclusive of prescribed rate of GST and GST cess. ITC available to buyer as shown in the bid document have been applied while evaluating the bids. Seller has liability of paying the GST and GST cess to the govt and same will be charged from buyer while invoice.</p> <p>3. For Registered sellers who opted for RCM while quoting for specified category under section 9(3) like GTA rates will be exclusive of GST and GST cess. GST and GST cess as indicated by the buyer in the bid document payment of GST and GST Cess will be the liability of buyer.</p> <p>4. For Unregistered sellers Liability of payment of GST and GST cess is in Buyers scope. GST and GST cess as indicated by the buyer in the bid document will be the liability of buyer . Unregistered seller will invoice buyer with zero GST and Zero GST cess.</p> <p>5. For sellers under Composition Scheme: There is no liability of payment of GST and GST cess in Buyers cope. Seller will invoice Zero GST and GST cess in the invoice to buyer.</p> |                                                                                                                                |                                                                                                                                                                                                                                                               |
| Terms and Conditions  नियम और शर्तें                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                |                                                                                                                                                                                                                                                               |
| 1. General Terms and Conditions-                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                |                                                                                                                                                                                                                                                               |
| 1.1 This contract is governed by the <a href="#">General Terms and Conditions</a> , conditions stipulated to this Product/Service as provided in the Marketplace.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                |                                                                                                                                                                                                                                                               |
| 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                |                                                                                                                                                                                                                                                               |
| 2. Buyer Added Bid Specific Terms and Conditions-                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                |                                                                                                                                                                                                                                                               |
| 2.1 Generic                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                |                                                                                                                                                                                                                                                               |

**OPTION CLAUSE:** The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

**2.2 Generic**

**Bidder financial standing:** The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

**2.3 Generic**

**End User Certificate:** Wherever Bidders are insisting for End User Certificate from the Buyer, same shall be provided in Buyer's standard format only.

**2.4 Generic**

Bidders shall quote only those products (Part of Service delivery) in the bid which are not obsolete in the market and has at least 5 years residual market life i.e. the offered product shall not be declared end-of-life by the OEM before this period.

**2.5 Generic**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

**2.6 Generic**

Data Sheet of the product(s) offered in the bid, are to be uploaded along with the bid documents. Buyers can match and verify the Data Sheet with the product specifications offered. In case of any unexplained mismatch of technical parameters, the bid is liable for rejection.

**2.7 Generic**

**Experience Criteria:** The Bidder or its OEM {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU / Public Listed Company for 2 years before the bid opening date. Copies of relevant contracts to be submitted along with bid in support of having supplied some quantity during each of the year. In case of bunch bids, the primary product having highest value should meet this criterion.

**2.8 Generic**

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

**2.9 Generic**

**Shelf Life:** The Product/Spare parts to be supplied as part of the services must have minimum 5 Years Shelf Life. On the date of supply, minimum Date of Supply usable shelf life should be available / balance.

**2.10 Generic**

The seller is required to print logo as per buyer's requirement.

**2.11 Generic**

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

**2.12 Generic**

While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the screenshot of GST portal confirming payment of GST.

**2.13 Scope of Supply:**

Scope of supply (Bid price to include all cost components) : Only supply of Goods

**2.14 Turnover:**

**Bidder Turn Over Criteria:** The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

**2.15 Turnover:**

**OEM Turn Over Criteria:** The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.

**2.16 OEM:**

**IMPORTED PRODUCTS:** In case of imported products, OEM or Authorized Seller of OEM should have a registered office in India to provide after sales service support in India. The certificate to this effect should be submitted.

**2.17 Purchase Preference (Centre):**

Indian suppliers of this item are not allowed to participate and/ or compete in procurement by some foreign governments. Bidders / products from such countries are not eligible / not allowed to participate in this bid in terms of clause 1 (d) of Public Procurement (Preference to Make in India) Order, 2017

**2.18 Purchase Preference (Centre):**

**Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service. If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded for percentage of 15% of total value.

**2.19 Service & Support:**

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

## **2.20 Service & Support:**

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

## **2.21 Inspection:**

Pre-dispatch inspection at Seller premises (Fee/Charges to be borne by the BUYER): Before dispatch, the goods will be inspected by Buyer / Consignee or their Authorized Representative or by Nominated External Inspection Agency (independently or jointly with Buyer or Consignee as decided by the Buyer) at Seller premises (or at designated place for inspection as declared / communicated by the seller) for their compliance to the contract specifications. Fee/Charges taken by the External inspection Agency and any external laboratories testing charges shall be borne by the Buyer. For in-house testing, the Sellers will provide necessary facilities free of cost. Seller shall notify the Buyer through e-mail about readiness of goods for pre-dispatch inspection and Buyer will notify the Seller about the Authorized Representative/ Nominated External Inspection Agency and the date for testing. The goods would be dispatched to consignee only after clearance in pre-dispatch inspection. Consignee's right of rejection as per GTC in respect of the goods finally received at his location shall in no way be limited or waived by reason of the goods having previously been inspected, tested and passed by Buyer/ Consignee or its Nominated External Inspection Agency prior to the goods' shipment. While bidding, the sellers should take into account 7 days for inspection from the date of email offering the goods for inspection. Any delay in inspection beyond 7 days shall be on the part of the buyer and shall be regularised without Liquidated Damages.

When there is requirement of submission the advance sample, the seller shall inform the buyer promptly through emails about the date of submission of sample to the buyer nominated Inspection agency.

## **2.22 Certificates:**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

## **2.23 Certificates:**

Material Test Certificate Should Be Sent Along with The Supply. The Material Will Be Checked by Buyer's Lab & the Results of the Lab will be the Sole Criteria for Acceptance of the Item.

## **2.24 Certificates:**

The bidder is required to upload, along with the bid, all relevant certificates such as BIS licence, type test certificate, approval certificates and other certificates as prescribed in the Product Specification given in the bid document.

## **2.25 Warranty:**

Timely Servicing / rectification of defects during warranty period: After having been notified of the defects / service requirement during warranty period, Seller has to complete the required Service / Rectification within 7 days time limit. If the Seller fails to complete service / rectification with defined time limit, a penalty of 0.5% of Unit Price of the product shall be charged as penalty for each week of delay from the seller. Seller can deposit the penalty with the Buyer directly else the Buyer shall have a right to recover all such penalty amount from the Performance Security (PBG). Cumulative Penalty cannot exceed more than 10% of the total contract value after which the Buyer shall have the right to get the service / rectification done from alternate sources at the risk and cost of the Seller besides forfeiture of PBG. Seller shall be liable to re-imburse the cost of such service / rectification to the Buyer.

## **2.26 Sample Clause:**

After award of contract – Successful Bidder shall have to get advance sample approved from buyer before bulk manufacturing / starting bulk supplies. Successful Bidder shall submit 2 samples for Buyer's approval, within 7 days of award of contract. Buyer shall, as per contract specifications framework, either approve the advance sample or will provide complete list of modification required in the sample within 7 days of receipt of advance sample. Seller shall be required to ensure supply as per approved sample with modifications as communicated by Buyer. If there is delay from buyer side in approval of advance sample – the delivery period shall be refixed without LD for the period of delay in sample approval. In case, the sample is found to have major deviations / not conforming to the Contract specifications, the buyer at its discretion may call for fresh samples for approval before allowing bulk supplies or may terminate the contract after notifying the deviations to the seller.

Unless otherwise provided in the contract, all samples required for test shall be supplied by the contractor free of cost. Where under the contract, the contractor is required to submit an advance sample, any expenses incurred by the contractor on or in connection with the production of stores in bulk, before the sample has been approved unconditionally shall be borne by the Seller and he shall not claim any compensation in the event of such sample being found unacceptable by the Buyer / Consignee.

## **2.27 Past Project Experience:**

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc. Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc.

## **2.28 Past Project Experience:**

The Bidder / OEM (themselves or through reseller(s)), should have executed project for supply and installation / commissioning of same or similar Category Products during preceding 3 financial years (i.e. current year and three previous financial years) as on opening of bid, as per following criteria:

- (i) Single order of at least 35% of estimated bid value; or
- (ii) Two orders of at least 20% each of estimated bid value; or
- (iii) Three orders of at least 15% each of estimated bid value.

Satisfactory Performance certificate issued by respective Buyer Organization for the above Orders should be uploaded with bid. In case of bunch bids, the Category related to primary product having highest bid value should meet this criterion

## **2.29 Forms of EMD and PBG:**

Bidders can also submit the EMD with Account Payee Demand Draft in favour of DG Fire Service payable at Lucknow.

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

## **2.30 Forms of EMD and PBG:**

Bidders can also submit the EMD with Fixed Deposit Receipt made out or pledged in the name of A/C (Name of the Buyer). The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of EMD, the FDR will be released in the favour of the bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Bidder has to upload scanned copy/ proof of the FDR along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date/ Bid Opening date

## **2.31 Forms of EMD and PBG:**

Bidders can also submit the EMD with Banker's Cheque in favour of DG Fire Service payable at Lucknow.

Bidder has to upload scanned copy / proof of the BC along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

## **2.32 Forms of EMD and PBG:**

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of DG Fire Service payable at Lucknow. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

## **2.33 Buyer Added Bid Specific ATC:**

Buyer Added text based ATC clauses

**1- Upload Manufacturer authorization: Wherever Authorised Distributors are submitting the bid, Manufacturers Authorisation Form (MAF) /Certificate with OEM details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid.**

**2- Buyer reserves the right to postpone schedule of material supply after finalisation of order by 6 months without any additional cost implication**

**3- Loading and Unloading at yard will be under the scope of the supplier.**

**4- Receipt inspection at yard shall be carried out by Buyer QC team and or any external agency nominated by Buyer jointly with Seller representative. All requisite documentation including packing list, certificates, approved drawings etc are to be submitted to Buyer in advance for enabling inspection. Detailed Packing list (considered as actual supply quantity) shall clearly mention individual items in package and shall be the basis for physical inspection on receipt.**

**5- Bid reserved for Make In India products: Procurement under this bid is reserved for purchase from Class 1 local suppliers as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document 50%. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.**

**6- Preference to Make In India products (For bids less than 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document 50%. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.**

**7- Pri Bid Meeting Date/Time- 27-12-2022/14.00 PM, Venue-UP Fire Service Hqrs, 4<sup>th</sup> Tower, 1<sup>st</sup> Floor, Signature Building, Gomti Nagar, Lucknow.226002**

**8- Delivery Period-** 60 days

**9- Certification-** In addition to other NABL ACCREDITED/

**CENTRAL GOVT APPROVED / EN APPROVED**

**TEST Report for Point Number 10.3 of the ATC Shall be**

**Approved.**

**2.34 Buyer Added Bid Specific ATC:**

Buyer uploaded ATC document [Click here to view the file.](#)

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।